

STATE OF NEW YORK SUPREME COURT:
COUNTY OF NEW YORK

-----X
IAN REISNER,

Plaintiff,

-against-

MAUREEN LUPO,

Defendant.

-----X

Index No.:

JURY TRIAL DEMANDED

**Verified Complaint - EMERGENT
RELIEF REQUESTED**

Plaintiff Ian Reisner (“Plaintiff”), by and through his undersigned attorneys, for his
Complaint against Defendant Maureen Lupo (“Defendant”), alleges as follows:

PRELIMINARY STATEMENT

1. This is an action arising out of defendant’s blatant unauthorized access and use of
a property and event space located at 510W 42nd Street New York, New York. (the “Property”)

2. Despite failing to meet the requirements to lease the space, such as proof of
insurance and providing a security deposit, she has hosted several unauthorized events in the
space, generating approximately \$1,689,000.00 in revenues

3. These illegal events organized under Ms. Lupo’s control have been in violation of
licensing requirements, and lacked basic security and safety protocols, resulting in several
physical altercations, and other police intervention, including the most recent a tragic and violent
incident where an individual was shot in the head on December 9, 2024.

4. Ms. Lupo has created falsified and forged documents to present to New York
police officers in order to maintain her false control over the Property.

PARTIES

5. Plaintiff Ian Reisner is a ‘real estate mogul’ and the Master Lease Holder for the property located at 510W 42nd Street (the “Property”) in New York City, New York since March 2024.

6. Defendant Maureen Lupo is a resident of New York, New York, she conducted substantial amount of the complained of acts herein in New York, New York.

JURISDICTION AND VENUE

7. This Court has jurisdiction over this action pursuant to Civil Practice Law and Rules §§ 301 and 302, as Defendants conduct business and maintain properties within the State of New York.

8. Venue is proper in New York County pursuant to CPLR 503(a) and CPLR 503(c), because a substantial part of the events giving rise to the claim occurred in New York County, and Defendant resides in New York County.

FACTUAL BACKGROUND

9. At all times material hereto, Plaintiff was the Master Lease Holder for the property located at 510W 42nd Street (the “Property”) in New York City, New York.

10. He has held this position since March 2024.

Ms. Lupo’s Efforts To Obtain A Sub-Lease

11. Ms. Lupo began discussions to secure a sub-lease for the event/club space at the Property in June 2024.

12. Several lease drafts were prepared and circulated, including a draft sent by Mr. Magnus Hagen on October 3, 2024 which outlines a 90-day lease (see Exhibit 1 – Email of

Maureen receiving received term sheet; see also Exhibit 2 – Email re security deposit and insurance).

13. Despite extensive discussions, no valid lease was ever finalized or signed.

14. As shown in emails exchanged in October 2024, Ms. Lupo refused to comply with necessary conditions such as providing proof of insurance and security deposits required for the lease. (See Exhibit 3 – Emails Showing Lupo’s Reluctance; see also Exhibit 4 – Email showing Ian demanded from Lupo proof of insurance as a condition).

15. Later, she would falsely assert ownership over the lease despite her failure to meet the obligations set forth by the Master Lease Holder.

16. Emails from October 2024 reveal Ms. Lupo’s persistent unwillingness to adhere to management directives regarding licensing and operational rules.

17. Despite repeated requests from Plaintiff and the management team, Ms. Lupo refused to provide documentation for key requirements such as proof of insurance and security deposits necessary for lease execution. (See Exhibit 3).

18. Instead, she made assertions claiming ownership over the lease while refusing to comply with established conditions.

19. In one instance, Ms. Lupo dismissed concerns about her investors and financial obligations, stating that her investment and business decisions were her own and not subject to oversight. (See *id.*).

20. This baseless assertion, along with her disregard for hotel operations, including cleaning costs and staff utilization, created significant operational and financial burdens for the Property.

Ms. Lupo's Unauthorized Uses of the Property

21. Ms. Lupo hosted numerous illegal events at the Property without authorization, including a Halloween Party on Thursday, October 31, 2024, an unauthorized party taken place on November 8, 2024 that escalated into a physical altercation, requiring police intervention, and an illegal Event on Monday, December 9, 2024, which event resulted in a very serious physical altercation on the Property, leading to bodily injury.

22. On November 8, 2024, Ms. Lupo organized an unauthorized event at the Property that led to significant disturbances and required police intervention. (See Exhibit 5 – Email from Lemmerman re Weekend of Nov 7,8,9 Club Activities; see also Exhibit 16 – Email re Nov 6 2024 50 Cents Event).

23. This event, held without proper authorization, involved excessively loud music and other disruptive activities that caused noise complaints from neighbors and disrupted hotel operations. (See Exhibit 6 – Email Re_ NOISE COMPLAINTS, THUGGERY, Master Keys, SLA investigation etc.).

24. Hotel guests were refunded due to the intolerable disturbances, and the Property faced additional scrutiny from the community. (See Exhibit 7 – Email re Master Keys, SLA investigation and selling an equity stake).

25. Furthermore, unauthorized use of fog machines triggered fire alarms, escalating the situation and requiring intervention by the authorities. (See Exhibit 6.).

26. In the morning of December 9, 2024, an illegal event organized under Ms. Lupo's control resulted in a tragic and violent incident where an individual was shot in the head.

27. This incident, documented in a police report, underscores the severe risks associated with Ms. Lupo's reckless and negligent management of the Property. (See Exhibit 8 – Investigation Report).

28. Under her supervision, an individual gained access to the club with a loaded firearm, which was subsequently used to shoot another guest. (See *id.*).

29. This grave breach of safety protocols highlights the dangers posed by Ms. Lupo's continued, unauthorized, operation of events at the Property.

30. During these events, Ms. Lupo operated with gross disregard for safety and compliance.

31. She bypassed proper protocols by using her own point-of-sale terminals to evade sales tax reporting, and she permitted weapons, including firearms, into the venue (See *id.*; see also Exhibit 9 – Email from Paul Brown).

32. Her conduct demonstrated a consistent pattern of neglecting responsibilities and undermining the management's efforts to ensure compliance and accountability.

33. Plaintiff and his staff made repeated efforts to resolve the situation, including offering Ms. Lupo compensation or settlements to vacate the Property (see Exhibit 10 – “Formal Notice to Maureen Lupo”) and issuing communications emphasizing her lack of legal authorization and demanding her departure.

34. She was explicitly warned against showing up for unauthorized parties, violating permits, and operating the nightclub unlawfully, including instances of underage access and violations of SLA regulations (see Exhibit 11 – ‘Email from Lemmerman x Lupo Multiple Emails.pdf’ and ‘Exhibit 9).

35. Despite these efforts, Ms. Lupo continued her unlawful activities, disregarding all formal and informal warnings.

Ms. Lupos' Forgery of Lease Document

36. Following an incident in October 2024, Plaintiff's team determined that changing the locks at the Property was necessary to prevent further unauthorized and illegal activities by Ms. Lupo.

37. On November 6, 2024, Richard Lemmerman, Plaintiff's co-investor in the Property, arranged for the locks at the entertainment space to be changed. (Exhibit 12 – Mr Locks Invoice).

38. On November 11, 2024, after being locked out of the Property, Ms. Lupo presented law enforcement with a fabricated term sheet that appeared to bear Plaintiff's signature. She claimed this document granted her a legitimate leasehold over the Property. (See Exhibit 11; see also Exhibit 13 – “term sheet bearing Ian's signature”).

39. Plaintiff reviewed the document and confirmed that the signature on the term sheet was not his.

40. By presenting this falsified document, Ms. Lupo deliberately attempted to mislead law enforcement and assert unauthorized control over the Property.

41. Despite efforts by Mr. Lemmerman, through his attorney Nick Kaiser, to explain to officers from the NYPD 10th Precinct that the term sheet was not a valid lease, the officers declined to act immediately. They instructed Plaintiff's team to return the keys to Ms. Lupo pending further clarification. (See Exhibit 11).

Interference with Prospective Economic Advantage

42. Ms. Lupo actively interfered with Plaintiff's negotiations with Richard Born, the master landlord of the Property, regarding both an extension of Plaintiff's lease and a potential purchase of the Property. (See Exhibit 14).
43. Ms. Lupo made repeated threats, including through text messages and phone calls, to contact Mr. Born directly. These threats included plans to disparage Plaintiff in an attempt to undermine Plaintiff's credibility and to position herself and her associates from the TAO Group as alternative candidates for securing a deal with Mr. Born. (See *id.*).
44. These actions were baseless and designed to cause harm to Plaintiff's reputation, credibility, and standing with Mr. Born, jeopardizing Plaintiff's ability to finalize critical negotiations essential to Plaintiff's business interests.

Impact of Ms. Lupo's Actions

45. Ms. Lupo's actions have caused significant disruption, including reputational damage due to disturbances, police interventions, and safety concerns arising from her events as well as financial losses resulting from the inability to lease the space to other tenants.
46. Defendant generated an estimated \$1,698,000 in unlawfully earned revenue during her unauthorized occupancy, none of which was shared with the landlord as required under any legitimate lease agreement. (See Exhibit - "Illegal Revenue Overview")
47. Defendant actions have demonstrated a blatant disregard for health and safety, creating serious and dangerous situations requiring law enforcement intervention.
48. Furthermore, she has misled law enforcement by presenting a forged lease, hindering their ability to act on repeated requests for her eviction.

49. Ms. Lupo is hosting events without due regard for public safety, including failing to provide sufficient security at her events, which exposes attendees to unacceptable risks of harm.

50. She allowed firearms to be brought onto the Property, as occurred during the event on December 9, 2024. She operated without the necessary permits or adherence to safety regulations, endangering attendees and the surrounding community.

51. Allowing Ms. Lupo continued access to the Property represents a grave and imminent danger to the public.

52. Her lack of due diligence and disregard for safety measures creates an environment where serious accidents are not just possible but likely, and have already occurred.

53. The December 9, 2024, incident is a clear example of how quickly her events can escalate into violent and hazardous situations.

54. Despite repeated efforts to remove Ms. Lupo and protect the Property, her persistent hold and the use of a forged lease document have rendered Plaintiff unable to act effectively regarding renting and operating the Property.

55. This has led to serious financial losses for the Plaintiff and has created an ongoing threat to public safety.

CAUSES OF ACTION

I. Declaratory Relief

56. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

57. Defendant has presented a falsified “Term Sheet For Lease Agreement” to NYPD police officers with a forged signature purporting to be that of the Plaintiffs.

58. Defendant claims to be a legitimate lessee while Plaintiff refutes this maintaining no lease was ever agreed to and the signature on the purported “Term Sheet for Lease Agreement” is not his and was fraudulently added.

59. A judgment would serve a useful purpose in clarifying or settling the legal issues.

60. A judgment would finalize the controversy and offer relief from uncertainty.

II. Trespass

61. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

62. Defendant knowingly entered into the Property without justification or permission, on multiple occasions.

63. Plaintiff made repeated demands for the Defendant to vacate the Property.

64. Defendant has refused all demands to vacate and continues to organize unauthorized events at the Property.

III. Injunctive Relief

65. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

66. Defendant had unlawfully exercised control over the Property to the exclusion and detriment of the Plaintiff.

67. She continues to proffer false statements and one particular falsified document to authorities in order to maintain the false authority to remain on the Property.

68. Plaintiff continues to be harmed through Defendants unauthorized use of the Property in the form of direct monetary damages, damages to the Property, damages to Plaintiff's reputation.

69. Plaintiff request a court order that Defendant be permitted from remaining on the Property, advertising and hosing events at the Property, and holding herself out as a legitimate lessee at the Property.

70. Absent the grant of this request, Plaintiff will continue to suffer irreparable harm.

IV. Unjust Enrichment

71. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

72. Defendant was enriched in the amount of revenues she earned from unauthorized events hosted at the Property and in the form of her unauthorized usage and occupancy of the Property.

73. This enrichments was at the expense of Plaintiff expense,

74. It is against good equity and good conscience to permit Defendant to retain the revenues earned not only because she obtained it fraudulently but also because her lack of safety procedures and lack of diligence have left others physically harmed.

75. Defendant has been unjustly enriched at Plaintiff's expense, and it would be inequitable for Defendant to retain the benefit of Plaintiff's work without paying the success fee

V. Forgery

76. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

77. Defendant knowingly created, or altered a draft of a term sheet exchanged between the parties by falsifying Plaintiff's signature thereon.

78. Defendant created this document with the intent to defraud others including the plaintiff and the New York police department.

79. The false document was presented to the New York Police officers as a means to avoid her removal from the Property.

80. Police officers acknowledged the form and advised Plaintiff he must seek court intervention to clarify for them.

81. As a result of these fraudulent misrepresentations, Plaintiff has suffered substantial damages.

VI. Negligence

82. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

83. Defendant owed Plaintiff a reasonable duty of care that a normal ordinary person would owe another.

84. Defendant breached this duty through various actions described herein and as will be further revealed in discovery.

85. Defendant's breach resulted in damage to the Property, and damage to the Plaintiff in the form of direct monetary damages, the occupancy of the Property, and reputational damage, among others.

VII. Interference Torturous interference with perspective further economic advantage

86. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

87. An economic relationship exists between the plaintiff and the master landlord-landlord Richard Born. (“Over Landlord”)

88. The defendant has knowledge of the relationship.

89. The Defendant had committed intentional acts designed to disrupt the relationship.

90. Defendants actions have caused actual disruption of the relationship.

91. Resulting in economic harm to the plaintiff proximately caused by the acts of the Defendant.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against Defendant as follows:

92. For declaratory relief that the purported “Term Sheet for Lease” presented by the Defendant to NYPD Police Officers is illegitimate;

93. For compensatory damages in an amount to be determined at trial, but not less than \$1,700,000.00, plus interest, costs, and attorneys’ fees as permitted by law;

94. For punitive damages resulting from Defendants’ fraudulent misrepresentation;

95. For restitution or disgorgement of the benefits obtained by Defendants through unjust enrichment;

96. For such other and further relief as the Court may deem just, equitable, and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a Trial by Jury On All Issues.

Dated: January 13, 2025

New York, New York

By: HANTMAN & ASSOCIATES
www.hantmanlaw.com

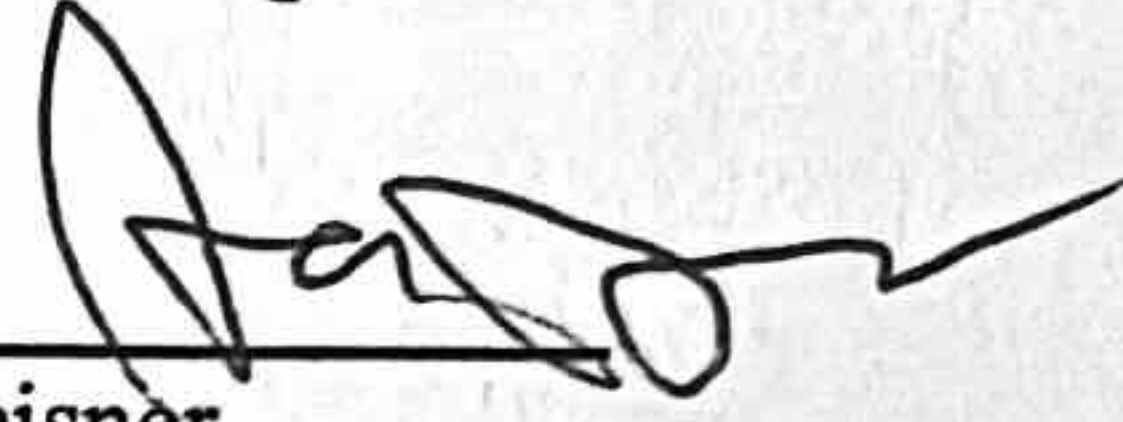
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VERIFICATION

I, Ian Reisner Verify that I am the Plaintiff in this action; that I have read and know the contents of the foregoing Verified Complaint; that the same is true of my own knowledge and belief, except as to those matters therein stated on information and belief, and as to those matters, I believe them to be true.

I affirm this 10th day of January, 2025, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

By: 
Ian Reisner